



ZIMBABWE

ACT

To amend the Electricity Act [*Chapter 13:19*] and to provide for matters connected with or incidental to the foregoing.

ENACTED by the Parliament and the President of Zimbabwe.

1 Short title

This Act may be cited as the Electricity Amendment Act, 2023.

2 Amendment of section 60A of Cap. 13:19

Section 60C (“Transportation of material used in connection with generation, transmission, distribution or supply of electricity”) of the principal Act is amended—

- (a) in subsection (1) by the deletion of “and liable to a fine not exceeding level 14 or to imprisonment for a period not exceeding five years or to both such fine and such imprisonment” and the substitution of “and if there are no special circumstances peculiar to the case as provided for in subsection (4), be liable to imprisonment for a period of not less than ten years”;
- (b) in subsection (2) by the deletion of “to imprisonment for a period not less than one year” and the substitution of “to imprisonment for a period not less than ten years.”.

3 Amendment of section 60C of Cap. 13:19

Section 60C (“Transportation of material used in connection with generation, transmission, distribution or supply of electricity”) of the principal Act is amended—

- (a) in subsection (2) by the deletion of “and liable to a fine not exceeding level 14 or to imprisonment for a period not exceeding five years or to both such fine and such imprisonment” and the substitution of “and if there are no special circumstances peculiar to the case as provided for in

subsection (2a), be liable to imprisonment for a period of not less than ten years.”;

- (b) by the insertion of the following subsections after subsection (2)—

“(2a) If a person referred to in subsection (2) satisfies the court that there are special circumstances peculiar to the case, which circumstances shall be recorded by the court, why the penalty provided under subsection (2) should not be imposed, the convicted person shall be liable to a fine up to or exceeding level 14 or to imprisonment for a period not exceeding ten years, or to both such fine and such imprisonment.

(2b) A court sentencing a person under subsection (2) shall not order that the operation of the whole or any part of the sentence be suspended.”;

- (c) by the repeal of subsection (3).